

Rights and Freedoms During Conflict and Displacement in Somalia

Introduction

War does not remove the fundamental rights of civilians. Somali citizens, refugees, asylum-seekers, internally displaced people, returnees, migrants, women, children, older people, and people with disabilities remain entitled to dignity, humane treatment, protection from violence, and access to basic services.

These protections are supported by the **Provisional Constitution of the Federal Republic of Somalia**, the **Universal Declaration of Human Rights**, the **International Covenant on Civil and Political Rights**, the **African Charter on Human and Peoples' Rights**, the **Geneva Conventions**, international refugee law, and international humanitarian law.

The Somali Constitution recognizes that fundamental rights must be interpreted consistently with general principles of international law. Article 38 permits limitations on rights only when they are provided by law and are necessary and proportionate. Security measures must not be used as a justification for torture, collective punishment, discrimination, or arbitrary detention.

In practice, people may face difficulties accessing justice and services because of armed conflict, insecurity, displacement, poverty, lack of documentation, discrimination, weak institutions, and the presence of armed groups.

Right to Life and Personal Security

Every person has the right to life and personal security. Article 13 of the Somali Constitution recognizes the right to life and protects individuals from unlawful harm.

Civilians should not be deliberately killed, executed, abducted, disappeared, or targeted during military operations. Parties to an armed conflict must distinguish between civilians and military targets.

International support for this protection includes:

- Article 3 of the Universal Declaration of Human Rights, which protects life, liberty, and security.
- Article 6 of the International Covenant on Civil and Political Rights, which protects the inherent right to life.
- Common Article 3 of the Geneva Conventions, which protects persons not actively participating in hostilities.
- Article 4 of the African Charter on Human and Peoples' Rights, which protects the right to life and integrity of the person.

Homes, schools, hospitals, markets, religious buildings, and humanitarian facilities should not be deliberately attacked. Indiscriminate attacks and attacks that are expected to cause excessive civilian harm are prohibited under international humanitarian law.

Protection from Torture and Cruel Treatment

No person should be tortured or subjected to cruel, inhuman, or degrading treatment. Article 14 of the Somali Constitution prohibits torture and other forms of inhuman treatment.

This protection applies to civilians, prisoners, detainees, refugees, asylum-seekers, children, suspected criminals, and people accused of supporting armed groups.

Torture may include severe physical or psychological abuse, forced confessions, threats against relatives, sexual violence, electric shocks, burning, beatings, prolonged solitary confinement, and deliberate denial of essential medical treatment.

The prohibition is also supported by:

- Article 5 of the Universal Declaration of Human Rights.
- Article 7 of the International Covenant on Civil and Political Rights.
- The Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.
- Common Article 3 of the Geneva Conventions.
- Article 5 of the African Charter on Human and Peoples' Rights.

No emergency, military operation, political crisis, or allegation of terrorism justifies torture.

Protection from Arbitrary Arrest and Detention

People should not be arrested or detained without a lawful reason. Article 15 of the Somali Constitution protects personal liberty and security.

A person who is arrested should be informed of the reason for the arrest and should have access to legal procedures. Secret detention, enforced disappearance, detention without charge, prolonged detention without judicial review, and denial of contact with family or legal representatives are serious violations.

This protection is supported by:

- Article 9 of the Universal Declaration of Human Rights.
- Article 9 of the International Covenant on Civil and Political Rights.

- Article 6 of the African Charter on Human and Peoples' Rights.
- Article 75 of the Fourth Geneva Convention, where applicable to protected persons in conflict situations.

Security forces and authorities should maintain accurate detention records and inform families about the whereabouts and condition of detainees where security conditions permit.

Right to a Fair Trial

A person accused of a crime is presumed innocent until proven guilty through a fair and lawful process. Article 34 of the Somali Constitution recognizes the rights of accused persons and fair-trial protections.

Fair-trial rights include receiving information about the accusation, having sufficient time to prepare a defence, accessing legal assistance, presenting evidence, challenging evidence, receiving interpretation where necessary, and being heard by a competent, independent, and impartial court.

These protections are supported by:

- Articles 10 and 11 of the Universal Declaration of Human Rights.
- Article 14 of the International Covenant on Civil and Political Rights.
- Article 7 of the African Charter on Human and Peoples' Rights.
- Common Article 3 of the Geneva Conventions.

Traditional or community-based dispute-resolution mechanisms may be important in Somali society, but they should not be used to justify torture, forced confessions, discrimination, child marriage, sexual violence, or denial of basic legal protections.

Freedom of Movement and Residence

Article 21 of the Somali Constitution recognizes the right of every person lawfully residing in Somalia to move freely, choose a residence, and leave the country. Somali citizens also have the right to enter and remain in Somalia and to obtain a passport.

This protection is supported by:

- Article 13 of the Universal Declaration of Human Rights.
- Article 12 of the International Covenant on Civil and Political Rights.
- Article 12 of the African Charter on Human and Peoples' Rights.

In practice, movement may be restricted by armed checkpoints, military operations, clan disputes, curfews, explosive devices, roadblocks, insecurity, lack of documentation, or fear of attack.

Any restriction should be lawful, necessary, proportionate, and applied without discrimination. Civilians should not be forcibly displaced unless evacuation is necessary for their safety or required by an imperative military reason.

Under Article 49 of the Fourth Geneva Convention and Article 17 of Additional Protocol II, where applicable, displaced civilians should receive protection, shelter, food, water, sanitation, healthcare, and information.

Refugee Protection and Non-Refoulement

Article 37 of the Somali Constitution states that a person who has sought refuge in Somalia should not be returned to a country where that person has a well-founded fear of persecution.

This principle is known as **non-refoulement**. It means that refugees and asylum-seekers should not be returned to a place where they face persecution, torture, serious conflict-related harm, or threats to their life or freedom.

The protection is also supported by:

- Article 33 of the 1951 Refugee Convention.
- Article 3 of the Convention against Torture.
- Article 22 of the Convention on the Rights of the Child.
- Article 12(3) of the African Charter on Human and Peoples' Rights.
- International customary refugee law.

The Somali Constitution requires Parliament to regulate refugees and asylum-seekers in accordance with international law. Refugees and asylum-seekers should have access to information about registration, documentation, asylum procedures, protection, and humanitarian assistance.

A person's application for asylum should be assessed individually and fairly. Contacting a humanitarian organization does not automatically guarantee refugee status, resettlement, relocation, or financial support.

Rights of Internally Displaced People

Internally displaced people remain entitled to the rights of citizens and residents. They do not lose their rights because they have moved from one part of Somalia to another.

The protection of IDPs is supported by:

- Article 12 of the International Covenant on Civil and Political Rights.
- The African Union Convention for the Protection and Assistance of Internally Displaced Persons in Africa, known as the Kampala Convention.
- The UN Guiding Principles on Internal Displacement.
- Articles 13, 21, 27, and 28 of the Somali Constitution.

IDPs should have access to protection, identity documents, healthcare, education, food, water, shelter, work, property, family unity, and freedom from discrimination.

They should be protected from forced eviction, illegal land seizure, recruitment, trafficking, sexual violence, exploitation, and abuse. Durable solutions should be voluntary, safe, informed, and dignified.

Protection from Forced Eviction

Displacement-site residents should not be evicted without lawful procedures, adequate notice, consultation, and reasonable alternatives for safety and shelter.

The right to property is supported by Article 26 of the Somali Constitution and Article 17 of the Universal Declaration of Human Rights. The right to housing, food, water, and basic services is also connected to Article 27 of the Somali Constitution and the International Covenant on Economic, Social and Cultural Rights.

The Kampala Convention requires authorities to protect internally displaced people from arbitrary displacement and to provide assistance during displacement.

Forced eviction may expose families to homelessness, violence, disease, hunger, and further displacement. Special attention should be given to women-headed households, children, older people, people with disabilities, and families without documentation.

Freedom of Expression and Access to Information

Article 18 of the Somali Constitution recognizes the right to hold and express opinions and to receive and communicate information and ideas.

This protection is supported by:

- Article 19 of the Universal Declaration of Human Rights.
- Article 19 of the International Covenant on Civil and Political Rights.
- Article 9 of the African Charter on Human and Peoples' Rights.

Journalists, human rights defenders, community leaders, humanitarian workers, and ordinary citizens should not be threatened or attacked solely because they report abuse, criticize authorities, discuss public affairs, or document humanitarian conditions.

Restrictions on expression must be established by law and must be necessary for legitimate purposes such as protecting public safety or the rights of others. Restrictions must not be used to silence lawful criticism or conceal human rights violations.

People should exercise caution when discussing armed groups, military operations, clan disputes, or political leaders because public statements may create personal security risks.

Freedom of Peaceful Assembly and Petition

Article 20 of the Somali Constitution recognizes the right to organize and participate in peaceful meetings, demonstrations, protests, and petitions.

This right is supported by:

- Article 20 of the Universal Declaration of Human Rights.
- Article 21 of the International Covenant on Civil and Political Rights.
- Article 11 of the African Charter on Human and Peoples' Rights.

Authorities may regulate assemblies for genuine public-safety reasons, but restrictions should be lawful, necessary, proportionate, and applied equally. Peaceful demonstrators should not be arbitrarily arrested, tortured, disappeared, or subjected to collective punishment.

Freedom of Religion and Belief

Article 17 of the Somali Constitution recognizes the freedom of every person to practise their religion. The Constitution also establishes Islam as the state religion and provides that no religion other than Islam may be propagated in Somalia.

People should not be attacked, tortured, forcibly converted, or discriminated against because of their religious identity or beliefs.

The protection of religious freedom is also supported by:

- Article 18 of the Universal Declaration of Human Rights.
- Article 18 of the International Covenant on Civil and Political Rights.
- Article 8 of the African Charter on Human and Peoples' Rights.

Religious identity should not be used to justify violence, collective punishment, forced conversion, or attacks against civilians.

Equality and Non-Discrimination

Article 11 of the Somali Constitution provides that all citizens have equal rights and duties before the law and prohibits discrimination on grounds including clan, ethnicity,

colour, tribe, gender, birth, residence, language, political opinion, disability, occupation, and wealth.

This protection is supported by:

- Articles 1 and 2 of the Universal Declaration of Human Rights.
- Articles 2 and 26 of the International Covenant on Civil and Political Rights.
- Article 2 of the African Charter on Human and Peoples' Rights.
- Article 3 of the Convention on the Rights of the Child.

People should not be denied protection, food, healthcare, education, employment, housing, or justice because of sex, age, disability, clan, minority status, religion, political opinion, nationality, displacement status, poverty, or place of origin.

Minority communities, women, children, displaced people, people with disabilities, and people without identity documents may face additional barriers and require specific protection.

Rights of Women and Girls

Women and girls have the right to safety, dignity, healthcare, education, work, property, political participation, and protection from violence.

The Somali Constitution's equality provisions in Article 11 support equal protection before the law. Article 27 recognizes economic and social rights, while Article 24 protects workers, including women, from sexual abuse, discrimination, and segregation in the workplace.

Women and girls are also protected by:

- The Convention on the Elimination of All Forms of Discrimination against Women, where applicable.
- The Convention on the Rights of the Child.
- The African Charter on Human and Peoples' Rights.
- UN Security Council resolutions on women, peace, security, and conflict-related sexual violence.

Conflict increases the risks of rape, sexual exploitation, forced marriage, domestic violence, trafficking, and other forms of abuse. Survivors are entitled to medical care, psychosocial support, protection, and confidential assistance.

Sexual violence is never the survivor's fault. Survivors should not be forced to disclose details publicly, confront the perpetrator, or report to authorities if doing so would place them at greater risk.

Rights of Children

Children have the right to life, protection, development, education, family unity, healthcare, and freedom from violence and exploitation.

These protections are supported by:

- Article 29 of the Somali Constitution.
- Articles 6, 19, 22, 32, 34, 35, 38, and 39 of the Convention on the Rights of the Child.
- The Optional Protocol to the Convention on the Rights of the Child on the involvement of children in armed conflict.
- The African Charter on the Rights and Welfare of the Child.
- International humanitarian law relating to children in armed conflict.

Children should not be recruited or used by armed groups or security forces. They should be protected from killing, injury, abduction, sexual violence, forced marriage, trafficking, exploitation, and family separation.

Children associated with armed groups should receive protection, rehabilitation, education, medical care, psychosocial support, and family-reunification assistance. They should be treated according to their age and needs, even when they are accused of involvement with an armed group.

Right to Healthcare

Article 27 of the Somali Constitution recognizes the right to healthcare and provides that no person should be denied emergency healthcare because of inability to pay.

This protection is supported by:

- Article 25 of the Universal Declaration of Human Rights.
- Article 12 of the International Covenant on Economic, Social and Cultural Rights.
- Article 24 of the Convention on the Rights of the Child.
- Article 16 of the African Charter on Human and Peoples' Rights.
- The Geneva Conventions and international humanitarian law protecting medical personnel and facilities.

Hospitals, clinics, ambulances, medical workers, and patients should be protected during armed conflict.

People should not be denied emergency treatment because of clan identity, displacement status, nationality, political opinion, disability, or inability to pay when emergency services are available.

Right to Food, Water, Shelter, and Sanitation

Article 27 of the Somali Constitution recognizes the right to clean potable water, healthcare, and social security.

These protections are supported by:

- Article 25 of the Universal Declaration of Human Rights.
- The International Covenant on Economic, Social and Cultural Rights.
- The Convention on the Rights of the Child.
- The Kampala Convention.
- Articles 55 and 56 of the Fourth Geneva Convention, which address food and medical supplies for civilians in occupied territories.

Conflict-affected people should have access to food, drinking water, shelter, sanitation, healthcare, and protection.

Humanitarian aid should not be stolen, blocked, diverted, sold unlawfully, or exchanged for political loyalty, military recruitment, money, or sexual favours. Parties to a conflict should facilitate rapid and unhindered humanitarian relief for civilians in need.

Protection of Humanitarian Workers

Humanitarian workers should be allowed to assist civilians safely, independently, and impartially.

The protection of humanitarian personnel is supported by international humanitarian law, including Article 71 of Additional Protocol I and Article 18 of Additional Protocol II, where applicable, as well as customary rules protecting humanitarian relief personnel.

Attacks, threats, abductions, extortion, unlawful detention, and obstruction of humanitarian workers can prevent vulnerable people from receiving lifesaving assistance.

Humanitarian organizations should respect confidentiality, impartiality, neutrality, independence, and the dignity of the people they serve.

Protection of Property

Article 26 of the Somali Constitution recognizes the right of every person to own, use, enjoy, sell, and transfer property. Compulsory acquisition by the state should serve a public interest and should involve fair compensation.

Property protections are also supported by:

- Article 17 of the Universal Declaration of Human Rights.
- Article 14 of the African Charter on Human and Peoples' Rights.
- Article 46 of the Fourth Geneva Convention, concerning the protection of private property during occupation.
- The Kampala Convention and UN Guiding Principles on Internal Displacement.

Civilians should not have their homes, land, farms, livestock, shops, or personal possessions unlawfully seized or destroyed.

Displaced people may lose access to land and property records. Legal assistance, community mediation, official documentation, witness statements, and property records may help resolve disputes where safe and available.

Privacy and Personal Information

Article 17 of the Somali Constitution protects the privacy of the home, personal communications, and other private information.

Privacy protection is also supported by:

- Article 12 of the Universal Declaration of Human Rights.
- Article 17 of the International Covenant on Civil and Political Rights.
- Article 16 of the Convention on the Rights of the Child.

People's personal information should not be collected, used, or disclosed without a lawful reason or informed consent.

Special protection should be given to the identities and locations of survivors of sexual violence, children, refugees, asylum-seekers, journalists, witnesses, detainees, defectors, and people accused of supporting armed groups.

Reporting Abuse and Access to Remedies

Article 39 of the Somali Constitution provides for the right to seek remedies for violations of human rights. Article 41 provides for the establishment of a national human rights institution.

A person experiencing abuse may seek support from a trusted health facility, protection organization, women-led organization, legal-aid provider, community protection officer, humanitarian agency, court, police service, or appropriate government institution.

Reporting should be voluntary and safe. A person should not be forced to report to the police, publicly identify an attacker, or provide information that may expose them or their family to retaliation.

The right to an effective remedy is also supported by:

- Article 8 of the Universal Declaration of Human Rights.
- Article 2(3) of the International Covenant on Civil and Political Rights.
- Article 7 of the African Charter on Human and Peoples' Rights.
- The UN Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power.